

2. 9:00 AM CASE NUMBER: C25-02393

CASE NAME: TOM SPIES VS. IRA HARRIS

*CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 10. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then the CMC is continued to May 11, 2026 at 8:30 a.m.

3. 9:00 AM CASE NUMBER: C25-01776

CASE NAME: JOHN DOE VS. ETHAN BUCKLEY

*CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 8. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then the CMC is continued to May 11, 2026 at 8:30 a.m.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-01790

CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50

HEARING IN RE: MOTION TO QUASH RECORDS SOUGHT IN SUBPOENA OF BUSINESS RECORDS

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Katherine Staudt Motion to Quash or limit records sought in a subpoena *duces tecum* served by Defendant Albertsons Safeway LLC is **denied**.

Background

This is a personal injury action where Plaintiff Katherine Staudt ("Plaintiff") claims that on September 10, 2020, she slipped and fell at the Safeway store operated by Defendant Albertsons Safeway LLC ("Defendant") located at 1355 Moraga Way, Moraga, CA, due to a dangerous condition maintained by Safeway and/or other defendants. She claimed to have sustained significant injuries in that incident.

In Plaintiff's responses to Defendant's first set of form interrogatories, she claims she sustained injuries to her patella and tibia and the tendons in that area as well as a "frozen or locked kneecap." (Despotes Dec. ¶¶ 3, 4; Ex. 2, 3.) She claims her quadriceps and thigh muscles are only partially functional and claims dysfunction and injury to the back of her knee. (Id.) She further claims "aggravation of or injury" to her lumbar spine, gastrointestinal distress, "injury to her psyche" due to

the trauma of these injuries, and “lost time, ability, and functioning in pursuit of personal goals and matters involving loved ones.” (Id.) She claims ongoing, worsening, daily symptoms in the affected areas. (Id.) She discloses treatment at the John Muir emergency department and Muir Orthopedics in Walnut Creek and at Beyond Chiropractic. (Id.)

Plaintiff also makes a loss of past and future earnings claims with “losses in excess of \$150,000.” (Id.) She was or is employed at the Mount Diablo Unified School District. (Despotes Dec. ¶¶ 3, 4; Ex. 2, 3.) She discloses a subsequent injury that occurred on April 20, 14 2021 “based upon unhealed weakened status from prior injury of 9/10/20.” (Id.) She pursued an ICH CIN workers’ compensation claim in connection with this subsequent injury. (Id.)

On October 10, 2025, Defendant pursued a subpoena duces tecum for her medical records from the following entities:

- Mt. Diablo Unified School District -1936 Carlotta Dr., Concord
- LWP Claims Solutions - P.O. Box 349016 , Sacramento
- John Muir Health -1601 Ygnacio Valley Road, Walnut Creek
- Humana Insurance Company c/o CT Corp. - 330 N. Brand Blvd., Suite 700, Glendale
- Beyond Chiropractic -1511 Treat Blvd., Suite 100, Walnut Creek
- Muir Orthopedic Specialists - 2405 Shadelands Dr., Suite 210, Walnut Creek
- Mt. Diablo Unified School District -1936 Carlotta Dr., Concord
- Beyond Chiropractic - 1511 Treat Blvd., Suite 100, Walnut Creek

On October 28, 2026, Plaintiff Katherine Staudt filed a Motion to Quash or limit records sought in a subpoena duces tecum for employment records and billing records related to treatment she received for injuries allegedly caused by the injuries she sustained in this case. The Motion was supported by a Memorandum of Points and Authorities, Declaration of Plaintiff and Notice. Plaintiff generally asserts that she is entitled to privacy regarding her health records, records regarding her worker’s compensation claim, and has already responded to interrogatories supplying information about her injuries.

In opposition, Defendant claims that Plaintiff places her injuries at issue. Accordingly, Defendant maintains that it is entitled to obtain records relevant to Plaintiff’s personal injury and loss of earnings claims by issuing subpoenas to the providers identified in Plaintiff’s discovery responses. Defendant maintains that Plaintiff has made no showing that the subpoenas at issue intrude upon her reasonable expectation of privacy under the circumstances or that such intrusion is “serious.”

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to medical, billing records and worker's compensation records sought, there is no disagreement that Plaintiff's statutorily (Evid. Code, § 990 et seq.) and Constitutionally (Cal. Const., art. I, § 1) recognized rights to maintain the privacy of her medical records is not waived in its entirety by the allegations she has made. (E.g., *Britt v. Superior Court* (1978) 20 Cal.3d 844, 862-864; Also, *In re Lifschutz* (1970) 2 Cal.3d 415; *Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853-1857.) However, to the extent she has placed her physical condition in issue and claims that she has sustained injuries as a result of this alleged incident, she has given up the right to shield from the Defendant her medical records that reasonably relate to the claim she has asserted and for the disclosure of which there is a compelling need that outweighs the plaintiff's interest in preserving her privacy. (*Lantz v. Superior Court*, *supra*, at pp. 1854-1855, 1857.) If Plaintiff also claims that she has sustained additional injuries resulting in a worker's compensation claim that relate back to the slip and fall incident on September 10, 2020, the records relating to that claim are relevant as they are likely to lead to the discovery of admissible evidence in this case. Since there is a dispute concerning not only the extent of Plaintiff's injuries, but their causation, her contention that discovery must be limited to responses to interrogatories is a misunderstanding of the purpose of discovery.

After reviewing the papers submitted by counsel and plaintiff, and after applying the applicable statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion to Quash.

Ruling

Plaintiff Katherine Staudt Motion to Quash or limit records sought in a subpoena *duces tecum* served by Defendant Albertsons Safeway LLC on or about October 10, 2025 is **denied**. The 3rd parties subject to the subpoena *duces tecum* are ordered to produce the records sought within ten (10) days from the date of service of this order.

Defendant's counsel prepare and e-file a proposed order that conforms to this ruling no later than five (5) court days from the date of this hearing, attaching a copy of this tentative ruling.